

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

CHINA UNITED LINES, LTD.,

Complainant,

vs.

AMAZON.COM SERVICES, LLC; AMAZON
LOGISTICS INC., AND BEIJING CENTURY
JOYO COURIER SERVICE CO., LTD.,

Respondents

FMC Docket No. 25-04

COMPLAINANT’S MOTION FOR PREHEARING CONFERENCE

Complainant China United Lines, Ltd. (“CUL”) respectfully requests that the Presiding Officer set a virtual prehearing conference pursuant to 46 C.F.R. § 502.209, during the week of September 21, 2026, in advance of the evidentiary hearing scheduled for October 21, 2026 (the “Evidentiary Hearing”). CUL believes that a prehearing conference would assist both the parties and the Presiding Officer in efficiently managing and streamlining the Evidentiary Hearing and resolving, at a minimum, the following issues:

- The allocation of hearing time and the anticipated length of the Evidentiary Hearing. The Fourth Revised Scheduling Order contemplates the hearing lasting a single day, October 21, 2026. *See* Dkt. No. 79. However, Complainant indicated in its portion of the July 6, 2026 Joint Status Report that it anticipated needing approximately 16 hours to present its case. Dkt No. 78. Since that time, Complainant has worked to reduce and narrow the issues to be presented at the Evidentiary Hearing. While Complainant believes that the hearing may be

completed within a single day, it respectfully submits that a second hearing day may be necessary depending on the evidence and testimony presented. CUL requests clarification regarding whether the Evidentiary Hearing may continue onto a subsequent day, if necessary, until the presentation of evidence is complete, consistent with the Presiding Officer's schedule. Advance clarification will assist the parties in preparing witnesses, coordinating travel for domestic and international witnesses, counsel, and corporate representatives, and organizing the presentation of evidence;

- The order and manner of presenting witnesses, including whether witnesses will be excluded from the hearing room before their testimony;
- Whether the Presiding Officer envisions a full presentation of Complainant's case and Respondent's response, or whether the Presiding Officer envisions a presentation of evidence limited to the material disputed facts;
- Whether the Presiding Officer desires for a presentation of dueling expert opinions to be made at the Evidentiary Hearing;
- The procedures governing deposition designations and counter-designations at the Evidentiary Hearing;
- The availability of exhibit-presentation technology in the hearing room and the treatment and use of demonstratives and electronic evidence;
- The procedures governing foreign language interpretation services and court-reporting services for the Evidentiary Hearing;
- The Evidentiary Hearing's start and end times, as well as the location of the Evidentiary Hearing within the Commission's Washington, D.C. offices;

- Whether the hearing room will be made available prior to the date of the Evidentiary Hearing, for the purpose of testing the hearing room's technology;
- The Presiding Officer's expectations regarding the parties' preparations for and conduct at the Evidentiary Hearing, including any additional submissions, materials, witness-related requirements, or other preparations not already addressed in the Scheduling Order; and
- Any other matters which the Presiding Officer would like to discuss in anticipation of the Evidentiary Hearing on October 21, 2026.

Resolution of these matters before the Evidentiary Hearing would further the purposes of FMC Rule 209. CUL therefore respectfully requests that the Presiding Officer schedule a virtual prehearing conference on a date convenient to the Presiding Officer. CUL's counsel are available during the week of September 21, 2026. Separately, CUL requests that its in-house counsel Teresa Zhu, its outside counsel Chye Hock Koh, and its consulting counsel, Nicholas Poynder be permitted to attend any prehearing conference and the Evidentiary Hearing. Ms. Zhu and Mr. Poynder are non-US attorneys, and Mr. Koh is admitted to practice before the courts of Virginia.

Pursuant to 46 C.F.R. § 502.71, on September 17, 2026, CUL notified counsel for Respondents of its intent to file this Motion. Counsel for Respondents indicated that Respondents will oppose this request.

Accordingly, CUL respectfully requests the Presiding Officer convene a prehearing conference pursuant to 46 C.F.R. § 502.209 to address the issues identified above and provide guidance regarding the conduct of the Evidentiary Hearing.

Respectfully submitted,

DATED: September 18, 2026

BMC// LAW

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*Counsel for Complainant,
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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 17th day of September 2026, a true and correct copy of the foregoing **Motion for Prehearing Conference** was served via electronic mail on:

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